

CERTIFIED POSH TRAIN-THE-TRAINER | MODULE 3

CLEAR POSH Framework™

A practical methodology for navigating a POSH training session, workplace disclosure or inquiry.

PURPOSE

Use CLEAR as your professional compass throughout the programme. Later modules will deepen the legal and procedural knowledge behind each letter.

The five-part framework

C	Clarity on the Law	Ground the conversation in the POSH Act, applicable Rules and organisational policy.
L	Listening Without Judgment	Receive questions and experiences fairly, without rushing to conclusions.
E	Explaining Boundaries	Make unwelcome conduct, consent, impact and professional boundaries understandable.
A	Addressing Resistance	Respond calmly to minimisation, defensiveness, myths and difficult questions.
R	Responsible Reporting	Guide concerns and disclosures towards safe, accurate support and reporting pathways.

ANCHOR QUESTION

When you are in the room and unsure what to do next, ask yourself: Which letter am I in right now?

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Understanding each CLEAR capability

C - Clarity on the Law

- Know the legal foundation before simplifying it.
- Translate technical provisions into accurate, plain language.
- Correct myths without overstating the law.
- Separate legal requirements, good practice and organisational policy.

Trainer pause: What is legally accurate here, and how can I explain it simply?

L - Listening Without Judgment

- Allow the person to speak without interruption.
- Listen fairly and avoid assumptions about either party.
- Separate facts, perceptions and inferences.
- Do not investigate or promise an outcome during a disclosure.

Trainer pause: What must I understand before I respond?

E - Explaining Boundaries

- Explain 'unwelcome' conduct, consent, context and impact.
- Use relatable workplace examples without sensationalising.
- Distinguish friendliness and mutual interaction from unwelcome conduct.
- Include verbal, non-verbal and physical behaviour.

Trainer pause: What boundary or concept needs to become clearer?

Understanding each CLEAR capability - continued

A - Addressing Resistance

- Stay calm; do not shame or enter into a debate.
- Acknowledge the concern, examine the assumption and return to principle.
- Address minimisation, hierarchy and power dynamics.
- Correct myths about intent, compliments, false complaints and scope.

Trainer pause: What resistance is preventing understanding?

R - Responsible Reporting

- Explain available reporting and support routes accurately.
- Encourage action without pressuring the person or promising results.
- Protect confidentiality within statutory and process limits.
- Direct urgent safety concerns to the appropriate organisational channel.

Trainer pause: What is the safest, most accurate next step?

CLEAR application map

Situation	Active letters	Primary focus
Explaining the law	C + E	Accuracy and accessible language
Receiving a disclosure	L + E + R	Listen, clarify and guide next steps
Supporting an inquiry process	C + L + A + R	Fairness, resistance and process
Facilitating a POSH session	All five	Integrate the complete framework

Worked example: “It was only a joke.”

During a POSH session, a participant says: “People are becoming too sensitive. It was only a joke, and there was no bad intention.”

FIRST, HOLD THE NUANCE

A joke is not automatically sexual harassment. The trainer should not deliver a verdict without facts. The correct response is to examine the nature of the remark, whether it was sexual or gendered, whether it was unwelcome, the context, repetition, power relationship and its effect on the workplace.

Why ‘only a joke’ may not end the discussion

- Calling something humour does not remove its content or workplace impact.
- Lack of harmful intention does not automatically make unwelcome sexual or gendered conduct acceptable.
- A person may laugh because of discomfort, hierarchy or social pressure; laughter alone does not prove welcome conduct.
- A single incident may still require attention depending on its nature and seriousness.
- The facilitator must explain the principle without declaring that a specific unexamined incident is legally proved sexual harassment.

Worked example - applying CLEAR

C	Clarify the principle	"Intent gives us context, but we must also examine the nature of the remark, whether it was unwelcome and the surrounding circumstances."
L	Explore before concluding	"What makes you see it as harmless? Let us understand the situation before forming a view."
E	Explain the boundary	"Humour can cross a workplace boundary when it is sexual or gendered, unwelcome, humiliating, repeated after discomfort, or contributes to a hostile environment."
A	Address minimisation	"The purpose is not to ban humour. It is to ensure that humour does not compromise dignity, safety or someone's ability to participate at work."
R	Explain the next step	"If someone feels uncomfortable, they may seek support or use the organisation's reporting route. Any concern must be handled respectfully and confidentially within the applicable process."
REMEMBER CLEAR is not a rigid script. It is a pause-and-respond discipline: ground yourself in law, listen fairly, explain clearly, address resistance and guide responsible action.		

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